and necessity. That resulted in fewer cases of suspects being threatened in the past two years, as officers are now tasked with focusing more on restitution, filing chargesheets and collecting evidence in old as well as new cases.

RETURNING THE MONEY

If the filing of a PC is the most visible metric of institutional change, restitution—the return of attached assets to the victims of financial crime—is its most tangible proof. In FY26, the ED restituted assets worth Rs 32,678 crore to victims and legitimate claimants, more than double the Rs 15,263 crore in FY25. As on March 31, 2026, cumulative restitution stands at Rs 63,213 crore—returned to banks, depositors, homebuyers and investors defrauded across decades. These included properties worth Rs 15,582 crore that were restituted to the Justice Lodha Committee for distribution to duped investors of PACL Ltd, the agricultural land Ponzi scheme that mobilised over Rs 48,000 crore.

Navin, in a statement on recent measures to increase transparency and accountability in the agency, said, "The Directorate of Enforcement remains steadfast in its mission to combat money laundering and safeguard the financial integrity of the nation. The outcome reflects the product of dedication, integrity and sustained effort of the officers and staff of the directorate, to whom I extend my sincere appreciation. We remain committed to evolving in line with the global best practices and addressing emerging challenges with resolve and professionalism."

Yet, as experts point out, filing a chargesheet is not the end of the road but a handover to another institution with its own pressures and pathologies. Of the roughly 60 cases that have reached final verdict since 2014, the ED may boast a conviction rate of over 93 per cent. But the denominator tells the real story: only 60 cases fully adjudicated out of thousands registered. As on March 31, with 6,146 cases still pending, the backlog remains formidable.

The courts present their own bottleneck. Repeated bail applications consume substantial hearing time. Sequential discharge petitions by co-accused stagger the framing of charges. Fugitive economic offenders, who have left the country and show no intent to return, cannot be prosecuted in absentia. Constitutional challenges pending before the Supreme Court have stayed proceedings in multiple cases. Several states, including Rajasthan, Chhattisgarh and Jharkhand, lack adequate numbers of PMLA special courts. The directorate is now pressing for dedicated fast-track special courts for PMLA matters and for legislative clarity on several procedural ambiguities. The political will to deliver these institutional upgrades, which require state government cooperation and legislative action, remains to be tested. ■

The writer is Senior Editor and Head of the National Bureau, AajTak and India Today TV

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